

Court No. - 21

Case :- WRIT - C No. - 41720 of 2016

Petitioner :- Jeetu @ Jeet Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dheeraj Kumar Tiwari

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

Jeetu @ Jeet Singh is before this Court assailing the demand notice dated 13.3.2015 issued by the respondent no.2 against him and for direction to the respondents not to harass him without any recovery citation issued by the respondents.

Record in question reflects that the father of the petitioner had taken an electricity connection of 7.5 HP for running the tubewell from respondent no.2 and he continuously paid the electricity bills. Unfortunately his father died in the year 2010 and thereafter the petitioner has continuously deposited the electricity bill. A notice dated 30.9.2014 was issued to the petitioner for payment of Rs.78,360/- due against him. The petitioner submitted his reply on 22.10.2014. Consequently, the respondent no.2 has issued the impugned demand notice of Rs.78,385/- on 13.3.2015 to which the petitioner again submitted his reply on 27.3.2015.

Learned counsel for the petitioner submits that the electricity connection was taken by the father of the petitioner and after his death, the petitioner continuously paid the electricity bill. Without finalising the assessment, the respondent no.2 has illegally issued the demand notice of Rs.78,385/- against the petitioner only on the basis of first information report lodged by the concerned Junior Engineer of the electricity department. He prays for some breathing time to deposit the entire amount in question. In support of his submission, he has placed reliance on an interim order dated 15.7.2016 passed by Division Bench of this Court in Writ C No.21927 of 2016 (Shri Bholu vs. State of UP and 4 ors).

Learned counsel for the respondents has raised a preliminary objection regarding maintainability of the present writ petition on the ground that as per provisions contained in U.P. Electricity Supply Code, 2005 the petitioner has remedy to challenge the said assessment.

We have occasion to peruse the record in question and find that in response to the impugned demand notice the petitioner has already filed detailed objection on 27.3.2015. Once such is the factual position, then the same cannot be adjudicated by us under Art.226 of the Constitution of India.

In case the petitioner deposits half of the amount in question within 15 days' time from today, the authority will decide his objection in further three months.

The writ petition is disposed of, accordingly.

Order Date :- 5.9.2016

RKP

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Ref: Civil Misc. Time Extension Application No.149957 of 2017

This application in question has been moved for according 15 days' further time from today to comply with the order dated 5.9.2016.

Consequently, in the peculiar facts of the case, 15 days' time from today is accorded to the petitioner to comply with the order dated 5.9.2016.

The application stands disposed of.

This order has been passed in presence of Shri Chandan Agarwal, learned counsel for the respondent no.2.

Order Date :- 30.5.2017

RKP